

THE RAJASTHAN LEGISLATIVE ASSEMBLY (OFFICERS AND MEMBERS EMOLUMENTS AND PENSION) (AMENDMENT) ACT, 2020

Source: <https://indiankanoon.org/doc/54375488/>

Skip to main content

Legal Document View

Tools for analyzing structure and cite text of judgments

Unlock Advanced Research with

PRISM

AI

Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions

-

Know your Kanoon

-

Doc Gen Hub

-

Counter Argument

-

Case Predict AI

-

Talk with IK Doc

-

...

Upgrade to Premium

[Cites

0

, Cited by

0

]

State of Rajasthan - Act

THE RAJASTHAN LEGISLATIVE ASSEMBLY (OFFICERS AND MEMBERS EMOLUMENTS AND PENSION) (AMENDMENT) ACT, 2020

RAJASTHAN

India

THE RAJASTHAN LEGISLATIVE ASSEMBLY (OFFICERS AND MEMBERS EMOLUMENTS AND PENSION) (AMENDMENT) ACT, 2020

Act 25 of 2020

Published in Rajasthan Gazette on 25 September 2020

Commenced on 25 September 2020

[This is the version of this document from 25 September 2020.]

??????

??? ?????-????

??????????

RAJASTHAN GAZETTE

Extraordinary

???????????????????? Published by Authority

?????? ?1,???????,????

? ?1942-????????

23, 2020

Asvina 1, Wednesday , Saka 1942- September 23, 2020

4(?)

?????

??? ?????? ?????????

? ?????? ????

LAW (LEGISLATIVE DRAFTING) DEPARTMENT

(GROUP-II)

NOTIFICATION

Jaipur, September 23, 2020

No. F. 2(20)Vidhi/2/2020.- The following Act of the Rajasthan State Legislature

which received the assent of the Governor on the 22nd

day of September, 2020 is hereby

published for general information:-

THE RAJASTHAN LEGISLATIVE ASSEMBLY (OFFICERS AND MEMBERS

EMOLUMENTS AND PENSION) (AMENDMENT) ACT, 2020

(Act No. 25 of 2020)

(Received the assent of the Governor on the 22nd

day of September, 2020)

An

Act

further to amend the Rajasthan Legislative Assembly (Officers and Members Emoluments and Pension) Act, 1956.

Be it enacted by the Rajasthan State Legislature in the Seventy-first Year of the Republic of India, as follows:-

1.

Short title and commencement.- (1) This Act may be called the Rajasthan Legislative Assembly (Officers and Members Emoluments and Pension) (Amendment) Act, 2020.

(2)

It shall come into force at once.

2.

Amendment of section 4-C, Rajasthan Act

No. 6 of 1957

.- In sub-section (1)

of section 4-C of the Rajasthan Legislative Assembly (Officers and Members Emoluments and Pension) Act, 1956 (Act

No. 6 of 1957

), hereinafter in this Act referred to as the principal Act,-

(i)

for the existing expression "1st April, 2017", the expression "1st April, 2019" shall be substituted;

(ii)

for the existing expression "a family pension equal to rupees twelve thousand five hundred or equal to fifty percent of the last drawn pension by such member, whichever is higher:", the expression "a family pension equal to

338.

???????

??? ?????-?????,???????

23, 2020????????????????????-4(?)

rupees seventeen thousand five hundred or equal to fifty percent of the last drawn pension by such member, whichever is higher:" shall be substituted; and

(iii)

in proviso,-

(a)

the existing word "and", appearing at the end of clause (ii), shall be deleted; and

(b)

for the existing punctuation mark "." appearing at the end of clause (iii), the expression "; and" shall be substituted and after the clause (iii) so amended, the following new clause shall be added, namely:-

"(iv) the spouse of a deceased Ex-member shall be paid the whole amount of any arrear of the family pension and where the spouse of a deceased Ex-member is not alive, the amount of arrear of such pension shall be paid in equal shares to the members of the family of deceased Ex-member.

Explanation.? The expression ?family? means the sons and unmarried daughters and such parents of the deceased Ex-Member as were wholly or mainly dependent on him or her at the time of his or her death."

3.

Amendment of section 5, Rajasthan Act

No. 6 of 1957

.- In sub-section (2) of

section 5 of the principal Act, for the existing expression ?a sumptuary allowance of eighty thousand rupees per mensem to the Government Chief Whip and a sumptuary allowance of seventy thousand rupees per mensem to the Deputy Government Chief Whip", the expression ?to the Government Chief Whip and Deputy Government Chief Whip, a sumptuary allowance of eighty thousand rupees per mensem" shall be substituted.

4.

Amendment of section 8-B, Rajasthan Act

No. 6 of 1957

.- In section 8-B of

the principal Act,-

(i)

after the existing sub-section (1) and before the existing sub-section (2), the following new sub-section shall be inserted, namely:-

?(1A) A member shall be entitled to receive, from out of the amount available in the relevant year under sub-section (1), reimbursement of amount equivalent to actual fare of journey abroad by air, ship or steamer paid by him, either alone or with persons accompanying him after approval of his request for such journey being accorded by the Speaker of the Legislative Assembly. Such journey shall be subject to compliance of guidelines issued and/or rules made relating to permission of such journey abroad, by the Government of India and State Government, from time to time.?.; and

(ii)

in sub-section (3), for the existing punctuation mark "?:?" appearing at the end, the punctuation mark "?:?" shall be substituted and after the sub-section (3) so amended and before the existing proviso, the following new sub-sections shall be inserted, namely:-

?(4) A member entitled to receive travelling allowance under section 8

????-4(?)????????????????????

??? ?????-?????,???????

????23,?2020????? ???????????339????

shall be entitled to receive reimbursement of amount equivalent to actual fare of any journey abroad undertaken by him by air, ship or steamer paid by him, either alone or with persons accompanying him, for study-tour of the Committee with the prior approval of the Speaker of the Legislative Assembly on surrendering such part of the facility provided by sub-section (1). Such journey shall be subject to compliance of guidelines issued and/or rules made relating to permission of such journey abroad, by the Government of India and State Government, from time to time.

(5)

Where a member entitled to receive travelling allowance under section 8, chooses to travel on his own will, for study-tour of the Committee, either alone or with persons accompanying him within the territory of India in any class of air, ship or steamer, he shall be entitled to surrender such part of the facility provided by sub-section (1) as is equivalent to the air, ship or steamer fare actually paid by him and receive the cash equivalent of the facility so surrendered.

(6)

Where a member entitled to receive travelling allowance under section 8 chooses to travel with the prior approval of Speaker, for study-tour of the Committee, either alone or with persons accompanying him within the territory of India in any class of air, ship or steamer, he shall be entitled to surrender such part of the facility provided by sub-section (1) as is equivalent to the difference between the air, ship or steamer fare actually paid by him and the railway fare to which he is entitled under that section and receive the cash equivalent of the facility so surrendered.

(7)

Where a member entitled to receive travelling allowance under section 8 chooses to travel, with the prior approval of Speaker, for study-tour of the Committee, either alone or with persons accompanying him, such places which are not connected to road or rail within the territory of India in any class of air, ship or steamer, he shall be entitled to surrender such part of the facility provided by sub-section (1) as is equivalent to air, ship or steamer fare actually paid by him and receive the cash equivalent to the facility so surrendered:?

??? ??? ?

? ??? ?????? ??,

Principal Secretary to the Government.

???? (?????? ?????????) ??????

(?????-2)

???????? ??

?????, 23 ???????, 2020

?????

?? ?.2(20)????/2/2020.- ??????

??? ? ??????? ?????? ???, 1956 (1956 ?? ?????? ??? ??? 47)

?? ????? 4 ?

? ??????? ?

? ?? ?????? ??? "?? ?????????? ? ?????????????? ?????????? (?????? ????? ????????)

340.

????????

?? ????-????,??????

??23,2020????????????????-4(?)

???????????? ???? ???? ?) (????????????) ???? , 2020 (???? ? ??? . 25 ?? 2020)" ?? ????? ?? ????? ?????????
?? ???? ???? ?????????? ????????? ???? ???? ??-

(???????? ? ?????? ??????)

???????? ???? ???? (???????????? ???? ????????? ???? ????????????? ???? ?????) (??????) ???????, 2020

(2020????????????????????????)

??????2

(???????? ???? ? ? ???? ???? ???? 22 ???????, 2020 ? ? ???? ?

? ??)

???????? ? ???? ? ???? (???????????? ???? ????????? ???? ????????????? ???? ???? ?) ???? ???? , 1956 ??

?? ????????? ???? ? ?

? ??? ????? ???? ?

???? ????????? ?

? ????????????? ???? ???? ????????? ? ?????? ???? ?-???? ???? ???? ????????? ? ???? ?:-

1. ????????? ???? ? ????- (1) ? ???? ???? ? ? ???? ????????? ? ???? ? ???? (???????????? ???? ?

???????? ? ? ????????????? ? ???? ?) (???????? ?) ???? ???? , 2020 ??

(2)

?? ?????? ????????? ???? ?

2. 1957 ?

? ????????? ????????? ??. 6 ? ???? 4-? ? ????- ???? ? ???? ? ???? ?

(???????????? ???? ????????? ? ? ????????????? ? ???? ?) ???? ???? , 1956 (1957 ? ???? ???? ??. 6), ???? ?

?? ???? ???? ???? ?

? ??

??? ???? ???? ???? ? ? ? ? ? ? 4-? ? ?-???? (1) ??-

(i)

???????? ? ???? ?

?????? "1 ?????, 2017" ?

? ??

??? ? ? ???? ?

?????? "1 ?????, 2019" ?????????

?????

?? ?????;

(ii)

???????? ? ???? ?

?????? "???? ???? ???? ? ???? ? ? ? ? ? ? ?

? ?????? ?????? ?????? ? ?

?

???? ????????? ?

? ?????, ?? ? ???? ??" ?

? ??

??? ? ? ???? ?

?????? "???? ???? ???? ? ?

???? ? ? ? ? ?

? ?????? ?????? ?????? ? ?

? ???? ????? ?

? ?????, ?? ? ???? ?

?" ?????????

???? ? ? ?????; ?

(iii)

?????

??? ???,-
 (?) ????
 ? (ii) ?
 ? ??? ? ? ? ? ? ? ? ?
 ? "?? ? ? ? ? ? ? ? ; ?
 (?) ???
 ? (iii) ?
 ? ? ? ? ? ? ? ? ? ? ? ? ? ? ? ? " ? ?
 ? ? ?
 ? ? ? ? ?
 ? ? ? ? ? " ; ? ?
 ? ? ? ? ? ?
 ? ? ? ? ? ? ? ? ? ? ? ? ? ? ?
 ? (iii) ?
 ? ? ?
 ? ? ? ? ?
 ? ? ? ? ? ? ? ?
 ? ? ?
 ? ? ? ? ? ? ? ? , ? ? ? ? ? ? :-
 "(iv) ? ? ? ? ? ? ? ? ? ? ? ?
 ? ?
 ? ? ? ? ? ? ? ?
 ? ? ? ? ? ? ? ? ? ? ? ? ? ? ? ? ? ?
 ?
 ?
 ? ? ? ? ? ? ? ?
 ? ? ? ? ? ? ? ? ? ? , ?
 ? ? ? ? ?
 ? ?
 ? ?
 ? ? ? ? ? ?
 ? ?
 ? ? ? ? ? ?
 ?
 ? ? ? ? -4(?) ? ? ? ? ? ? ? ? ? ? ? ? ? ? ? ? ? ?
 ? ? ? ? ? ? ? - ? ? ? ? ? , ? ? ? ? ? ? ?
 ? ? ? ? 23, ? 2020 ? ? ? ? ? ? ? ? ? ? ? ? ? ? ? 341 ? ? ? ?
 ? ? ? ?
 ? ? ? ?
 ? ? ? ? ? .- ? ? ? ? ?
 ? ? ? ? ? ? ' ?
 ? ? ? ? ? ?
 ? ' ? ? ? ? ? ? ? ? ? ? ? ? ? ? ? ?
 ? ?
 ? ? ? ? ? ? ?
 ?
 ? ? ?
 ? ? ? ? ? ? ? ? ? ? :
 ? ? ? ? ?
 ? ? : ? ? ? ? ? ? ? ? ? ? ? ?
 3. 1957 ?

? ?????????? ?????????? ?? 6 ?? ????? 5 ?? ??????- ??? ?????? ??? ?? ????? 5 ?? ??-
 ????? (2) ??? ?????????? ? ??????
 ??????? "??????? ????? ?????? ?? ?????
 ?? ?????? ?????? ?????????? ??????? ?????? ??
 ??????? ?? ?????? ?????? ?? ?????
 ?? ?????? ?????? ?????????? ??????? ??????" ?
 ? ???
 ??? ? ?? ??????
 ??????? "???????
 ?????? ?????? ?? ??????? ?? ?????? ?????? ?? ?????
 ?? ?????? ?????? ?????????? ??????? ??????" ??????????
 ??????? ??
 ?????????
 4. 1957 ?
 ? ?????????? ?????????? ?? 6 ?? ????? 8-? ?? ?????????- ??? ?????? ??? ?? ????? 8-? ??
 (i)
 ?????????? ? ??-???? (1) ?
 ? ???
 ??? ? ?? ?????????? ? ??-???? (2) ?? ?????, ?? ?????
 ? ??????? ? ??? ??-
 ?????? ?????:???
 ?????? ?? ???????, ?????? ?:-
 "(1?) ??? ??????
 ?, ?????? ????????? ?
 ? ??? ???
 ? ?? ?????? ?? ?????? ? ??? ???
 ????? ?
 ?
 ?? ??????? ? ?
 ? ???
 ??? ?, ?? ?? ??
 ? ?? ?? ???
 ? ??? ??? ?? ?????? ??????
 ????? ??
 ??????????? ?????, ???
 ?
 ??????? ?????????? ?????????? ?, ??? ?? ???
 ????? ?
 ? ??????
 ????? ??????? ?
 ? ?????? ??? ?? ??? ??????, ??-
 ????? (1) ?
 ? ????? ? ?????????? ??? ??? ??????
 ? ??? ??? ?? ???????
 ? ??? ?? ?? ?????? ?????? ??? ???????
 ?????? ?????? ?? ??????
 ? ?????? ?????????? ??? ?????? ?????????? ?? ?? ????????? ?
 ? ?????????? ??? ???-??? ??
 ?????? ??? ?? ?????????? ?????????????? ??/?? ?? ?????? ??? ?? ?????? ?
 ? ?? ????????? ? ?
 ? ???

???? ? ?????";
??
(ii)
??-???? (3) ???, ??? ?? ?? ???????? ? ????? ????? ? ":" ?
? ???
??? ? ??, ????? ????? ? "?"
?????????
????? ????? ?????? ?? ?? ?????? ?????????? ??-???? (3) ?
? ???
??? ? ?? ????????? ?
?????
??? ?? ????, ?? ????
? ?????? ? ?? ??-???????? ?????:???

????? ?? ?????????, ?????? ?:-

"(4) ???? 8 ?

? ????? ? ??????? ?????? ??????? ??? ?? ?? ?????? ??? ??????, ?????? ? ???
???

???? ?

? ????? ?? ?????? ? ?? ????? ?

? ???

??? ? ???? ?

? ???, ?? ?? ??

? ?? ?? ??

? ??? ?? ??

???? ?????

???? ??

?????????? ????, ??? ???? , ?? ?? ??

???? ??????? ?????? ?????? ?

? ???

? ??????

????????? ??????

???? ??????? ?

? ????? ?? ?? ?? ???? , ??-???? (1) ?????? ?? ??? ?????? ?

?

??? ?? ?? ??

???? ?? ?? ??, ??????

? ?? ?? ?? ?????? ?????? ??? ?????? ????? ?????? ??

?????

? ?????? ??????? ?? ?????? ?????? ?? ?? ?????? ?

? ??????? ?? ?? ??-?? ?? ??? ????? ??

????????? ??????????? ??/? ?? ??? ? ?? ?? ????? ?

? ?? ?????? ? ?

? ???

???? ? ?????

(5)

????? ???? 8 ?

? ????? ? ??????? ?????? ??????? ??? ?? ?? ?????? ??? ??????, ?????? ?

?

???

??? ? ???? ?

? ???, ???

????? ?? ??
 ?? ??, ?? ?? ??
 ? ?? ?? ??
 ? ??? ?? ?? ???
 ???
 ??
 ????????? ???? , ??? ???? , ?? ?? ??
 ??? ?? ???? ?? ???? ?? ???? ?
 ? ?????
 ????????? ?
 ? ???
 ????? ?? ?? ???? ?? ?? ??-???? (1) ????? ?? ?? ????? ?
 ? ?? ?? ??, ?? ?? ???? ???? ,
 342.
 ?????
 ?? ?????-????,????
 ???23,?2020????????????-4(?)
 ?? ?? ??
 ??? ?
 ? ??
 ? ????? ????
 ?? ?? ????? ????
 ? ????? ? , ??
 ??? ?? ?? ??, ??
 ?? ????? ?
 ????? ?? ?? ???? ?
 ? ????? ? ?? ????
 ? ?? ?? ??, ????? ????
 (6)
 ????? ??? 8 ?
 ? ??? ? ????? ???? ???? ? ?? ?? ???? ? ? ???? , ??
 ??? ?
 ?
 ??? ?? ????? ? ??, ????? ?
 ? ??
 ??? ? ??? ?
 ? ??, ?? ?? ??
 ? ?? ??
 ? ?? ?? ?? ???? ????
 ???
 ??
 ????????? ???? , ??? ???? , ?? ?? ??
 ??? ?? ???? ?? ???? ?? ???? ?
 ? ?????
 ????????? ?
 ? ???
 ????? ?? ?? ???? ?? ?? ??-???? (1) ????? ?? ?? ????? ?
 ? ?? ?? ??, ?? ?? ???? ???? ,
 ?? ?? ????? ?
 ? ??

?, ?????? ?? ??
?? ????? ?
? ????? ? ?????? ?, ?????? ?
? ?????? ?, ??????? ?? ?? ??, ?? ?? ??????? ???
?????
?? ??? ??????? ?
? ?????? ? ??? ??????
? ??? ?? ??, ?????? ?????
(7)
????? ????? 8 ?
? ????? ? ??????? ?????? ?????? ?? ?? ?? ?????? ??? ??????, ???
????? ?
?
????? ?? ??????? ? ??, ?????? ?
? ???
??? ? ????? ?
? ???, ?? ?? ??
? ?? ?? ???
? ??? ??? ?? ????? ??????
?????
??
?????????? ?????, ????? ?????, ??? ?? ???
???? ??? ????? ?? ????? ??? ????? ?
? ??????
?????????? ?
? ?????
??? ???
??? ???, ?? ??? ?? ??? ?? ????? ??? ? ?????? ???, ?? ??????? ??? ?? ????? ?? ?? ??-???? (1) ??????
?? ??? ??????? ?
? ??? ??? ??, ?? ?? ????? ?????, ??? ?? ???
????? ?
? ???
? ??????? ??????
?? ???
????????? ?????? ?
? ?????? ?, ???
????? ??? ?? ??, ?? ?? ??????? ???
?????? ?? ??? ??????? ?
?
????? ? ??? ??????
? ??? ?? ??, ?????? ?????:"?
??? ??? ?
? ??? ??????? ??,
?????? ????? ??????
??????
?????
? ?????
????????????????????